

24TRCV02184 24TRCV02184

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Case Number: 24TRCV02184 Hearing Date: August 18, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Tuesday, August 18, 2026 Department M Calendar
No.

PROCEEDINGS

Lyubov

Kroo, et al. v. Ford Motor Company, et al.

24TRCV02184

1. Lyubov Kroo, et al.'s Motion for Attorneys' Fees,
Costs, and Expenses

TENTATIVE RULING

Lyubov Kroo, et al.'s Motion for Attorneys' Fees,
Costs, and Expenses is granted in part.

Background

Plaintiffs filed the Complaint on June 28, 2024. Plaintiffs
allege the following facts. Plaintiffs purchased a 2020 Lincoln Aviator which
was manufactured and distributed by Defendant. The vehicle suffers from
defects. Defendant has not been able to repair the vehicle. Defendant has
refused to repurchase the vehicle. Plaintiff alleges violations of the Song-Beverly

Consumer Warranty Act ("Song-Beverly Act") and a cause of action for Negligent Repair.

Motion for Attorneys' Fees

Civ. Code, § 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Plaintiffs move for attorneys' fees and costs pursuant to Civ. Code section 1794(d) as the prevailing party in this action. Neither party disputes the contention that the settlement agreement provided that Plaintiffs are the prevailing party and that the instant Court would determine the amount of reasonable attorneys' fees. Thus, the Court will determine the amount of reasonable attorneys' fees and costs incurred via this noticed motion.

"The trial court has "broad authority" to determine the amount of [reasonable attorneys' fees]."

PLCM Group v. Drexler (2000)

22 Cal.4th 1084, 1095. "[T]he fee

setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." Id.

"California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." Id.

"The experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." Ketchum v.

Moses (2001) 24 Cal.4th 1122, 1132 (internal quotation omitted.)

Thus, Plaintiffs are entitled to attorneys' fees under the lodestar method based on the reasonable amount of time the attorney spent multiplied by a reasonable rate. Plaintiffs request \$29,072.75 in attorneys' fees and costs.

Plaintiffs attached as Exhibit A to the declaration of Roger Kirnos a full and detailed accounting of the billing and invoices related to this matter. (Decl., Roger Kirnos, Ex. A). Plaintiffs did not provide specific information regarding the rates charged by the attorneys and paralegals in this case in the declaration itself other than declarant who states that he charges \$600 per hour. Declarant Kirnos did provide a summary of the attorneys' respective experience. However, the billing statement does provide a range from \$200 to \$600 per hour for the attorneys and \$145 per hour for the paralegals. (Id. at Ex. A, p. 8).

Defendant opposes the motion and argues that the time expended and hourly rates were excessive and not supported. Defendant contends that the Court should award a lesser amount since Plaintiff fails to establish that the fees are reasonable. *Serrano v. Priest* (1977) 20 Cal.3d 25, 48. Defendant also argues that no multiplier should be awarded. Defendant further argues that Plaintiff failed to substantiate the alleged costs of \$3,224.75. Defendant concludes that Plaintiff should be awarded no more than \$7,942.75 in attorneys' fees.

"The lodestar adjustment method requires the trial court first to determine a touchstone or lodestar figure based on actual time spent and reasonable hourly compensation for each attorney. The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. For Song-Beverly Consumer Warranty Act claims, [a] prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998 (internal citations and quotations omitted). "Just as a court has discretion to increase the lodestar under several factors in such a case, it may also decrease it by looking at those same factors, including [...] the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 160–161(internal quotations omitted).

The Court deems that, based on the nature of this case

and the complexity of this case, the action does not warrant the addition of any multiplier or a deduction through the imposition of a negative multiplier. The Court finds that some of the hourly rates charged were excessive considering the nature of this case, the settlement amount, the attorneys' experience and background, the hourly rate in the community, and the type of work undertaken by counsel. The Court finds that \$350/hour is a reasonable maximum hourly rate for the type of work involved and the nature of this action. The Court declines to reduce the hourly rates of attorneys Yeimisi Olusada and Luis Pagola or the paralegals who worked on this case.

The Court also declines to reduce the hours spent litigating this action. While there may be certain areas of billing and time spent where an opposing party might have grounds to question, the Court cannot state that the hours expended were unnecessary or unreasonable.

Thus, the time expended by attorneys Armando Lopez, Colby Meagle, Chris Swanson, Debra Reed, Frederico Stea, Jacob Cutler, and Russell Higgins consisted of 32.3 hours: $32.3 \text{ hours} \times \$350/\text{hour} = \$11,305.00$. The Court adds the requested amount for the time incurred by the other attorneys and the paralegals which was \$1,796.50. Therefore, the total amount is \$13,101.50.

The Court declines to reduce the amount for the requested costs of \$3,224.75. The costs that were outlined in the memorandum of costs all appear to be costs that are authorized to be recovered. In addition, Chris Swanson submitted a declaration with the Reply which provides substantiation for the requested costs.

Therefore, the Court grants Plaintiff's Motion for Attorneys' Fees and Costs, in part. Thus, the Court fixes reasonable attorneys' fees in the amount of \$13,101.50. The Court fixes costs in the amount of \$3,224.75. The Court awards a total amount of attorneys' fees and costs in the amount of \$16,326.25.

Plaintiff is ordered to give notice of this ruling.